

BITSMUN 2025
Birla Institute of Technology and Science,
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29th-30th March



United Nations Human Rights Council

BACKGROUND GUIDE

AGENDA:

"Analyze the human rights consequences of large-scale infrastructure projects under China's Belt and Road Initiative, considering issues like displacement, labor rights, and environmental concerns."

TABLE OF CONTENTS

LETTER FROM THE EXECUTIVE BOARD.....	3
ABOUT UNHRC.....	4
Introduction to the Committee.....	4
History of the UNHRC.....	4
Mandate of UNHRC.....	5
Working of the UNHRC.....	5
INTRODUCTION.....	6
International Human Rights Laws.....	6
China's Belt and Road Initiative.....	7
DRAWBACKS OF BRI.....	7
1. Displacement and Land Rights.....	7
2. Labor Rights.....	8
3. Environmental Impacts.....	9
4. Transparency and Consultation.....	10
HISTORICAL DEVELOPMENT.....	11
Emerging Concerns (2013-2017).....	11
Increased Scrutiny (2018-2020).....	11
Reform Efforts (2021-2025).....	11
Current State of Affairs.....	11
AN IMPORTANT CASE.....	12
Espionage Charges at the African Union Headquarters.....	12
INTERNATIONAL LEGAL FRAMEWORKS.....	13
IMPORTANT QUESTIONS TO CONSIDER.....	14
CONCLUSION.....	14
IMPORTANT LINKS.....	15

LETTER FROM THE EXECUTIVE BOARD

Greetings Delegates!

It gives us immense pleasure to welcome you to this simulation of the United Nations Human Rights Commission at BITSMUN 2025. We look forward to an enriching and rewarding experience. In this background guide, we have tried to cover more breadth rather than depth. This document is supposed to be only an introduction to a few topics that we believe could become an interesting part of the debate that carries on for two days. This guide is by no means the end of the research. We would very much appreciate it if the delegates were able to find new realms in the agenda and bring them forth to the committee.

So just research and speak, and you are bound to make a lot of sense. We are certain that we will be learning from you immensely, and we also hope that you all will have an equally enriching experience. If you have any queries, feel free to contact us. We will try our best to answer the questions to the best of our abilities.

Remember that the goal of this simulation is not only to produce a resolution but also to engage in a process of learning, dialogue, and skill development that will serve you well beyond this conference.

We look forward to witnessing your debates, negotiations, and collaborative efforts. May your discussions be fruitful, your resolutions impactful, and your experience enriching.

We look forward to an exciting and interesting committee, which should certainly be helped by the all-pervasive nature of the issue. Hopefully we, as members of the Executive Board, will also have a chance to gain from being a part of this committee. Please do not hesitate to contact us regarding any doubts that you may have.

Sincerely,

Sehaj S. Dhillon
Chairperson

Manthan Gupta
Co-Vice Chairperson

Hitesh P. Srinivas
Co-Vice Chairperson

ABOUT UNHRC

Introduction to the Committee

The United Nations Human Rights Council is an intergovernmental body within the United Nations established in 2006 by the General Assembly, that is responsible for the promotion and protection of human rights across the globe and for addressing situations of human rights violations and making recommendations on them. The council is composed of 47 member states.

History of the UNHRC

The UNHRC was established in 1946 by ECOSOC and was one of the first two Fundamental roles and responsibilities of the council.

Adopting Resolutions: The HRC adopts resolutions during regular sessions that express the will of the international community on given human rights issues or situations. Adopting a resolution sends a strong political signal which can prompt governments to take action to remedy those situations.

Special Sessions: The HRC holds crisis meetings known as special sessions to respond to urgent human rights situations.

Universal Periodic Review (UPR): The Universal Periodic Review is a unique mechanism of the HRC that calls for each member of the United Nations to undergo a peer review of its human rights records every 4.5 years. The UPR provides each state the opportunity to regularly report the actions it has taken to improve human rights situations in their countries and to overcome challenges.

Special Procedures: The special procedures of the HRC are independent human rights experts who are mandated to report and advise on human rights from a thematic or country-specific perspective. They are non-paid and elected for 3-year mandates that are reconducted repeatedly.

Inquiries, debates, and discussions: Authorises commissions of inquiry and fact-finding missions that produce hard-hitting evidence on war crimes against humanity. The HRC also conducts debates where civil, social, economic, and cultural rights issues are being addressed.

Mandate of UNHRC

The UNHRC is mandated by the United Nations General Assembly to promote and protect the enjoyment and full realization, by all people, of all human rights. These rights are established by bodies such as The Charter of the United Nations, The Universal Declaration of Human Rights, and International Human Rights Laws and Treaties. The council also manages the Universal Periodic Review (UPR), a process through which each UN member state's overall human rights record is reviewed. It was established as a peer review mechanism for the assessment and advancement of human rights in all the UN member states. UPR reviews are formally conducted by the UPR Working Group of the council which comprises all 47 Council Member States. The UPR process is composed of:

1. Preparation and submission of the written reports by the State, civil society, and the Office of the High Commissioner for Human Rights which provides a foundation for the peer review.
2. During the UPR Session, the reports are presented orally, followed by an interactive dialogue where UN Member States make comments and recommendations to the State under review.
3. The Troika (group of three states) prepares a summary report of the comments and recommendations; the State may indicate its acceptance or rejection of the Recommendations.

Working of the UNHRC

The council serves as a forum for dialogue among states, with input from other stakeholders. As a result of its discussions, the council may issue resolutions calling on states to take specific actions or uphold certain principles, or it may create mechanisms to investigate or monitor questions of concern.

The Human Rights Council has created or renewed the mandates of various "Special Procedures". The special procedures are experts appointed to monitor human rights around priority themes or in specific countries with serious human rights problems. The special procedures may be individual experts or working groups. Special Procedures have either thematic or country-specific mandates. As of October 2022, The HRC oversees about 45 thematic special procedure mandates and 13 country-specific special procedures mandates. Special procedures mandate holders to serve in their personal capacities, meaning they do not represent their countries of citizenship. Each mandate holder may serve for a maximum of six years. This independent status is intended to allow these experts to carry out their functions unbiased.

Note:

Before we dwell into the intricacies of the agenda at hand, we would like to inform all the delegates of the fact that within the committee, we would want all of you to discuss the “consequences of China’s BRI Project” pertaining to “Human Rights issues”. We highly recommend all delegates refrain from deliberating solely upon China’s human rights issues in their entirety. We encourage all of you to draw parallels, provide logic, and substantiate arguments using any problems with China’s human rights policy. However, they should connect and explain your standpoint of the agenda i.e. “Human Rights Consequences of BRI”.

Moreover, we have tried to include various case studies to help delegates understand better the situation and hence help them develop arguments regarding the same. Appropriate substantiation as well as legalities have also been added to try to help delegates as to how arguments can be justified using such legal terms. However, we encourage delegates to go beyond the scope of this guide if needed and try to draw parallels between similar cases.



INTRODUCTION

International Human Rights Laws

Human rights are rights inherent to all human beings, regardless of race, sex, nationality, ethnicity, language, religion, or any other status. Human rights include the right to life and liberty, freedom from slavery and torture, freedom of opinion and expression, the right to work and education, and many more. Everyone is entitled to these rights, without discrimination.

The *Universal Declaration of Human Rights (UNDHR)*, together with the *International Covenant on Civil and Political Rights (ICCPR)* and its two Optional Protocols, and the *International Covenant on Economic, Social, and Cultural Rights (ICESCR)*, form the so-called [International Bill of Human Rights](#).

China's Belt and Road Initiative

The Belt and Road Initiative (BRI) is an ambitious program that seeks to connect Asia with Africa and Europe through land and maritime networks along six main economic corridors. Launched in 2013 by President Xi Jinping, the vast collection of development and investment initiatives was originally devised to link East Asia and Europe through physical infrastructure. In the decade since, the project has expanded to Africa, Oceania, and Latin America, significantly broadening China's economic and political influence. The six economic corridors account for a significant part of the global population and capital channeled to support major infrastructure projects along the Belt and Road (B&R). The extensive investment in infrastructures provides powerful financial impetus.

While supporters praise the BRI for its potential to boost global GDP and accelerate development in participating countries, significant concerns have emerged regarding its human rights implications. Reports suggest that one-third of BRI infrastructure projects have encountered major implementation problems such as labor violations, corruption, environmental hazards, and public protests.

DRAWBACKS OF BRI

There have been major drawbacks to China's BRI project which essentially violates many Human Rights as curtailed in the International Human Rights Laws. In this guide, we'll be discussing a few of the issues at hand, trying to understand how this initiative while boosting the economy has failed to safeguard the rights of the people, and looking at case studies to better approach a solution for the committee.

1. Displacement and Land Rights

Large-scale infrastructure projects have led to the forced relocation of communities, often without adequate compensation or alternative livelihood options. According to the *ICESCR* and the *UN Declaration on the Rights of Indigenous Peoples (UNDRIP)*, Indigenous people have the right to housing on the land that they have traditionally owned, occupied, or otherwise used. International Law also safeguards them from eviction without any formal notice, relocation and/or fair compensation. However, there have been several instances where China's BRI has failed to deliver such promises. One such instance occurred in Cambodia with the inauguration of the Lower Sesan 2 dam.

CASE STUDY 1: CAMBODIA

The Lower Sesan 2 hydroelectric scheme was completed in northeast Cambodia in 2018. A non-profit organization *Human Rights Watch* published a report that stated that over 5,000 indigenous and ethnic minority people were displaced and tens of thousands of people were devastated who relied on fishing, farming, and forest-gathering. The dam's construction flooded upstream areas, causing severe declines in fishery yields in the Mekong River, which supports millions of people across Southeast Asia. Critics argue that affected communities were coerced into inadequate compensation, given poor housing, and provided with no sustainable livelihood alternatives. The project highlights broader concerns over China's large-scale hydropower investments, which experts warn are pushing the region toward a food crisis by disrupting one of the world's most important freshwater fisheries.

2. Labor Rights

The Belt and Road Initiative (BRI), China's vast transnational development program, has contributed significantly to global infrastructure but has also led to alarming labor rights abuses, particularly affecting Chinese workers employed abroad. In 2021, China's Ministry of Commerce reported 592,000 Chinese workers overseas, though the real

number is likely higher due to undocumented laborers. Many of these workers, recruited through deceptive job ads and convoluted subcontracting chains, endure forced labor conditions that violate the *International Labour Organization's (ILO) Forced Labour Convention, 1930 (No. 29)* and the *Abolition of Forced Labour Convention, 1957 (No. 105)*, both of which China ratified in 2022. The lack of legal protections is exacerbated by China's failure to sign and ratify key international labor agreements, including the *ILO C97 Migration for Employment Convention*, *ILO C143 Migrant Workers Convention*, and the *United Nations International Convention on the Protection of the Rights of All Migrant Workers and Members of their Families*. Further complicating matters, Chinese embassies, local police, and even hired ex-military guards participate in suppressing workers' attempts to resist or seek help. The absence of oversight over Chinese companies operating abroad, combined with the political and economic stakes of the BRI, allows labor violations to persist unchecked.

3. Environmental Impacts

The environmental and human rights impacts of large-scale infrastructure projects are often deeply intertwined, with developmental benefits frequently accompanied by ecological degradation and social displacement. The Belt and Road Initiative (BRI), as an extensive transnational infrastructure program, raises significant concerns about its environmental footprint in South Asia, particularly in regions already grappling with pollution, deforestation, and biodiversity loss. The construction of roads, railways, and industrial hubs under the BRI contributes to deforestation, habitat fragmentation, and increased greenhouse gas emissions. Simultaneously, concerns over land acquisitions, displacement of local communities, and labor rights abuses highlight potential human rights violations. From a legal standpoint, the applicability of international agreements such as the *Paris Agreement*, the *United Nations Guiding Principles on Business and Human Rights*, and regional environmental frameworks becomes crucial. Partner countries must balance their developmental aspirations with compliance with *Environmental Impact Assessments (EIA)* and sustainability commitments to mitigate adverse effects.

CASE STUDY 2: CHINA-PAKISTAN ECONOMIC CORRIDOR (CPEC)

One of the most illustrative cases of BRI's environmental and human rights challenges is the China-Pakistan Economic Corridor (CPEC). Spanning key ecological zones, including the Gilgit-Baltistan region and the coastal areas of Balochistan, CPEC projects have led to deforestation, water contamination, and increased emissions from coal-powered energy plants. The establishment of Special Economic Zones (SEZs) has

raised concerns over labor rights, land displacement, and inadequate implementation of EIAs. Reports indicate that Pakistan's coal-based energy projects under CPEC will significantly increase greenhouse gas emissions, potentially exacerbating climate change effects in a region already vulnerable to extreme weather patterns. Moreover, local communities have expressed grievances over limited consultation processes and inadequate compensation for land acquisitions.

CASE STUDY 3: GREECE

Greece's Piraeus Port, operated by China's COSCO, has similarly faced criticism over its environmental and labor impacts. A ruling by Greece's Council of State found that COSCO's port expansion violated EU and national environmental laws due to the absence of a Strategic Environmental Impact Assessment.

CASE STUDY 4: SRI LANKA

in Colombo, Sri Lanka, the construction of a BRI-backed port city has raised concerns over marine ecosystem degradation, with local scientists warning of irreversible damage to coral reefs and fisheries.

4. Transparency and Consultation

One of the major concerns surrounding China's Belt and Road Initiative (BRI) is the lack of transparency and public consultation in decision-making processes. While the BRI has been presented as a model of inclusive globalization, evidence suggests that many projects are undertaken without adequate disclosure of information to affected communities, with limited consultation or avenues for grievance redressal. National governments in recipient countries have often bypassed environmental and social impact assessments, fast-tracking projects in ways that undermine local participation and accountability. This lack of transparency contradicts international legal frameworks such as the *United Nations Guiding Principles on Business and Human Rights*, which emphasize meaningful stakeholder engagement and the need for businesses to respect human rights. Similarly, the *International Finance Corporation (IFC) Performance Standards* call for robust environmental and social impact assessments before project implementation. Without adherence to these legal frameworks, BRI projects risk exacerbating socio-environmental inequalities, displacing communities, and fostering labor exploitation.

CASE STUDY 5: PERU

In Peru, residents of Chancay City were left uninformed about plans for a USD \$3 billion port expansion by COSCO and the mining company Volcan. The project, which involves the use of explosives near residential areas, has generated significant dust and noise pollution, yet companies failed to outline relocation or compensation measures for affected families.

CASE STUDY 6: KATHMANDU

In Kathmandu, Nepal, BRI-linked road and urban expansion projects have led to the displacement of rural communities without prior consultation, reflecting how large-scale infrastructure projects reshape landscapes while sidelining local interests.



HISTORICAL DEVELOPMENT

Emerging Concerns (2013-2017)

The early phase of BRI implementation saw major projects initiated with limited attention to human rights due diligence. Human rights organizations began documenting and reporting on concerns associated with BRI projects, highlighting the need for stronger safeguards as projects proceeded without comprehensive human rights impact assessments or meaningful consultation with affected communities.

Increased Scrutiny (2018-2020)

As more BRI projects reached implementation stages, better documentation of human rights impacts emerged. In 2019, Human Rights Watch issued a statement calling on the Chinese government to ensure BRI projects respect human rights, highlighting concerns about lack of transparency, disregard for community concerns, and environmental degradation. A Business and Human Rights Resource Centre report revealed that at least 679 incidents of alleged human rights abuses had been uncovered and linked to the business operations of Chinese companies abroad by 2021, with almost a third of alleged abuses taking place in Southeast Asia.

Reform Efforts (2021-2025)

In response to mounting criticism and implementation challenges, the Chinese government announced efforts to develop a "high-quality" BRI with greater attention to sustainability and risk management. At the latest BRI forum, President Xi laid out eight guiding principles for a new and improved "high quality" BRI, aimed at strengthening the BRI's record on issues like corruption, the environment, and debt over the next 10 years.

Despite these announcements, human rights organizations have continued to document ongoing concerns. A report by the *Global Forest Coalition* in 2023 exposed the human rights and environmental impacts of China-backed infrastructure projects in Kenya, Indonesia, and Argentina, with a particular focus on impacts on women and indigenous communities.

Current State of Affairs

As of March 2025, the Belt and Road Initiative continues to expand its global presence, though with increased awareness of its human rights implications and some efforts toward reform. The Chinese government has acknowledged some criticisms and announced intentions to implement a more sustainable approach to BRI, including greater attention to environmental impacts and social safeguards. However, implementation of these reforms remains uneven, and many projects initiated in earlier phases continue to operate without adequate human rights due diligence.



AN IMPORTANT CASE

Espionage Charges at the African Union Headquarters

Introduction

In 2012, the People's Republic of China completed building the African Union (AU) headquarters in Addis Ababa, Ethiopia, as a goodwill gesture worth \$200 million to the continent. This act of goodwill, however, was marred by allegations of spying, raising concerns over sovereignty and privacy over huge-scale infrastructure projects associated with China's Belt and Road Initiative.

Background: Chinese Investments in Africa

China's Belt and Road Initiative has considerably heightened its profile in Africa by making substantial investments in the development of infrastructure on the continent. The construction of the African Union headquarters was an integral component of this grand vision to spur economic cooperation and connectivity.

The Espionage Incident

In 2017, the AU's IT department discovered that data was being transmitted nightly to Shanghai servers. More investigation revealed microphones and listening devices embedded in the walls and desks, installed secretly during building construction. This led to a complete overhaul of the building's IT system and the removal of the bugging devices.

Response and Aftermath

After the disclosure, the African Union upgraded its server and communications hardware. When China volunteered to install the new hardware, the AU refused, opting to upgrade its cybersecurity systems on its own. China and the AU both denied the accusations, China calling them "baseless" and "preposterous".

Human Rights Implications

This incident presents particular human rights concerns in terms of sovereignty and privacy:

Privacy Infringements: The reported espionage violates the privacy of officials and diplomats who make use of the AU headquarters.

Sovereignty Issues: The installation of surveillance equipment without permission violates the sovereignty of African countries.

Conclusion

The allegations of spying at the African Union headquarters are meant to highlight the significance of respect for sovereignty and transparency in megaprojects for large-scale infrastructure. This example is meant to highlight the necessity of not compromising the security and privacy of host nations in such projects.

Important Points for the UNHRC Committee

Sovereignty and Privacy: It is essential that infrastructure projects maintain the sovereignty and privacy of the host nations.

Transparency Construction: Foster transparency in construction work so that unauthorized installation is prevented.

Independent Security Measures: Encourage host countries to implement independent security measures to protect sensitive data.

INTERNATIONAL LEGAL FRAMEWORKS

1. *Universal Declaration of Human Rights (UNDHR):* establishes fundamental human rights principles.

2. *International Covenant on Civil and Political Rights (ICCPR):* protects fundamental human rights, including freedom of speech, fair trials, and political participation.

3. *International Covenant on Economic, Social, and Cultural Rights (ICESCR):* guarantees rights related to work, health, education, and an adequate standard of living.

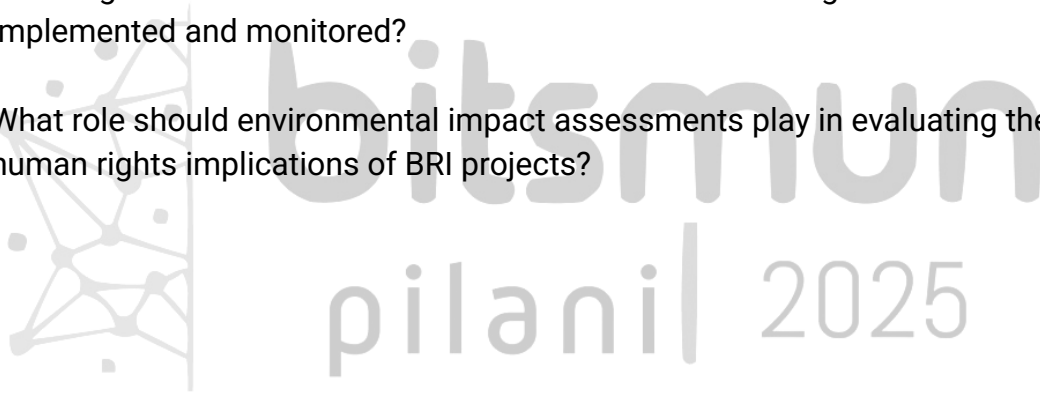
4. *UN Declaration on the Rights of Indigenous Peoples (UNDRIP):* establishes the right to free, prior, and informed consent (FPIC) for projects affecting indigenous lands, territories, or resources.

5. *UN Guiding Principles on Business and Human Rights:* establish that businesses have a responsibility to respect human rights, conduct human rights due diligence, and provide remedies for adverse impacts.

6. *International Labour Organisations Conventions:* Core labor standards established by ILO conventions are relevant to addressing labor rights concerns in BRI projects.

IMPORTANT QUESTIONS TO CONSIDER

1. How can the UNHRC effectively address human rights concerns related to BRI projects while respecting the sovereignty of involved states?
2. What are the respective responsibilities of China, host countries, and international institutions in ensuring BRI projects respect human rights?
3. What mechanisms could ensure meaningful consultation with affected communities before, during, and after BRI project implementation?
4. How can labor rights be effectively protected in transnational infrastructure projects involving workers from multiple countries?
5. How might UNHRC recommendations on BRI and human rights be effectively implemented and monitored?
6. What role should environmental impact assessments play in evaluating the human rights implications of BRI projects?



CONCLUSION

The committee being simulated, unlike most simulations you may have participated in; will emphasize political intelligence, logical intelligence, analytical usage of thoughts, and strategic usage of thoughts in solving the issue(s) presented.

Please keep in mind that we are not interested in present (unfeasible) solutions, or solutions that would be copy pasted of what the individual you are representing has already stated; rather, we are interested in an out-of-the-box solution from your end, while being sensitive and aware of the looming constraints of the individual and his politics you are representing.

Do not restrict your inquiry to the areas stated above; rather, ensure you rationally infer and broaden your inquiry to include areas covering issues under consideration. It is important to mention that, unlike the majority of the conventional committees you have participated in, this committee will experience "substantive" interference from the Executive Board.

The purpose of this background guide is to prepare you with a briefing of the issue(s) involved; therefore, to some, it might look incomplete. Our assumption is that 'study guides' go against the personal growth of delegates since they overlook a very important aspect of this exercise, which is Research. Having said that, we are confident that this background guide is a great guide for you to begin your research. Having said that, it is important that this guide not be your only reference. This guide will cover just a barebones overview of the agenda(s).

IMPORTANT LINKS

1. <https://www.hrw.org/news/2019/04/21/china-belt-and-road-projects-should-respect-rights>
2. <https://globalforestcoalition.org/wp-content/uploads/2023/10/EN-BRI-Paper-2023-2.pdf>
3. <https://chinalaborwatch.org/trapped-the-belt-and-road-initiative-and-its-chinese-workers/>
4. https://www.cisl.cam.ac.uk/files/chinas_belt_and_road_initiative090622_en.pdf
5. <https://www.hrw.org/report/2021/08/10/underwater/human-rights-impacts-china-belt-and-road-project-cambodia>
6. <https://greenfdc.org/countries-of-the-belt-and-road-initiative-bri/>
7. <https://www.un.org/en/about-us/universal-declaration-of-human-rights>
8. <https://www.ohchr.org/en/what-are-human-rights/international-bill-human-rights>

Thank you and have a fruitful committee ahead full of inspiring solutions!

